

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

ADMINISTRATIVE AGENCIES AND PROCEDURES

ADMINISTRATIVE AGENCIES

Administrative agencies are created by both Constitution and Statutes; they are vested with powers and responsibilities to carry out certain functions for the efficient and effective service of society by the government. These agencies are extra-ministerial and are part of public service; not civil service. Administrative agencies are created by law and equipped with powers to carry out public policies on behalf of the state and in the public interest. Administrative agencies and government departments help the Legislature in determining all the details of how the law will be enforced and implemented filling the gaps and passing rule and regulations to achieve the goal of the legislature.

Administrative agencies implement federal or state laws affecting almost every industry. For instance, government body such as the **National Environmental and Standard Regulatory Agency (NESREA)** create and enforce environmental safety regulations. NESREA passes regulations and rules to enforce the legislatures' goal of safeguarding and protecting the nation's environment within the ambit of the Constitution and extant international laws. We also have an agency such as **Nigeria Deposit Insurance Corporation (NDIC)** which was establish to ensure banking stability and avoid bank failures in Nigeria. NDIC, as an insurer has guaranteed the payment of deposits up to the maximum limit in accordance with its statute in the event of failure of an insured financial institution. **Independent National Electoral Commission (INEC)** is an agency established by the 1999 Constitution of the Federal Republic of Nigeria to among other things, organize and conduct free, fair and credible elections into various political offices in Nigeria for sustainable democracy. INEC wields power in Nigeria to the extent that the provisions of section 40 of the 1999 Constitution shall not derogate from the powers conferred by this Constitution on the Independent National Electoral Commission with respect to political parties to which that Commission does not accord recognition.

The states in Nigeria and FCT also have their own administrative agencies to implement and execute laws passed by their state legislatures. For instance, there is Rivers state Road Traffic Management Authority (TIMA –RIV) which is a government corporation that handles matters relating to road safety, traffic management and transportation in Rivers State. It was set up under the Road Traffic Law No.6 of 2009. We also have State Civil Service Commission, State Independent Electoral Commission and State Judicial Service Commission established for each state. See section 197 of the Constitution

Administrative agencies have quasi-legislative, quasi-executive and quasi-judicial functions.

The legal existence, functions, tenures, conditions of service and procedure of some of the administrative agencies are further enacted in a specific statute. For instance,

the functions, duties and powers of INEC are more detailed under the Electoral Act, 2022 and this can be said of so many other agencies. The major role that administrative agencies play under administrative law is to ensure that they perform the functions or specific tasks assigned to them by various laws that established them. The role can be investigative, law enforcement, rulemaking or adjudication.

By virtue of **section 153 of the Nigeria 1999 Constitution**, administrative agencies in Nigeria include:

- i. Code of Conduct Bureau
- ii. Federal Character Commission.
- iii. Federal Civil Service Commission
- iv. Federal Judicial Service Commission
- v. Independent National Electoral Commission
- vi. National Judicial Council
- vii. National Population Commission
- viii. Nigerian Police Council
- ix. Police Service Commission
- x. Revenue Mobilization Commission

ADMINISTRATIVE PROCEDURE OF THE ADMINISTRATIVE AGENCIES

Administrative agencies, being bodies created by law are expected to operate in accordance with the rules and procedures contained in the Act, statute or subsidiary laws that established them. They are not allowed to act arbitrarily or exercise discretion outside their mandate because that can lead to abuse of power. To curb arbitrariness, the actions/decisions of administrative agency are always expected to be in conformity with a laid down rule and valid bye-law and not on an extraneous fact or matters not provided for in the establishing law. The primary source of administrative procedure is the constitution or the statute establishing the agency. Where the constitution or the establishing statute made provisions on any issue concerning the agency or its function, then those rules must be given paramount consideration.

An agency can lay down its own rules and procedures where same is not provided in the establishing law. It is of the utmost importance that the enquiry be conducted in accordance with the principles of natural justice - **Denloye v Medical Practitioner Disciplinary Committee (1968) 1 All NLR 306 at 310; Adedeji v Police Service Commission (1967) All NLR 72 at 77**. Such rules become its mode of operation. However, as was decided in the two cases above, such rules must not breach any constitutional provision especially those dealing with the citizen's right to fair hearing.

It is the procedure of administrative agency to act within their power; otherwise, the action of the agency becomes ultra vires. See **P.H.M.B v Ejitagha (2000) FWLR (Pt. 9) 1510 SC**.

1. ADMINISTRATIVE DECISION AND RULE MAKING PROCEDURES

Law making rests with the citizenry or its representatives, however in practice modern democracies are apt to delegate some portions of its function to administrative

agencies. This aspect of administrative law is concerned with the level of guidance that is provided to agencies in their exercise of delegated law-making authority. In administration, matters of procedures are as much important as substantive issues. This is because the procedure adopted could be very determinative of the worth of the substantive rules you get at the end of the day. We have seen that the Constitution or the legislature can delegate power to an administrative agency. In exercising such power, the agency enacts delegated legislation by making rules, regulations, etc. But, for the agency to do this, there are processes or procedures it must follow. That is the crux of decision and rulemaking.

Definition of rule making

Rule

A rule is generally defined as an established and authoritative standard or principle; a general norm mandating or guiding conduct or action in a given type of situation. It is an agency statement of general or particular applicability and future effect designed to implement, interpret, or prescribe law or policy or describing the organization, procedure, or practice requirements of an agency. Administrative agencies are expected to abide by the rule in carrying out their administrative duties. They are not supposed to act arbitrarily.

Rule Making

S. 551(4) of the Administrative Procedure Act defines rulemaking as the agency process for formulating, amending, or repealing a rule. Iluyomade & Eka also defines rulemaking as the issuance of regulations or the making of determinations which are addressed to indicated but unnamed and unspecified persons or situations.

Decision or rule making is no more than delegated legislation. The donee of administrative power has the capacity to enact such delegated legislation. This legislation can also be referred to as subsidiary legislation, administrative legislation, administrative law making, administrative rule making, or administrative decision making. Administrative decision and rulemaking is the process used by an administrative agency to formulate, amend, or repeal a rule or regulation for the purpose of carrying out its objectives. It is the making of rules, regulations, determinations, policies, or decisions to regulate a given thing or situation.

Administrators make a lot of decisions and rules; these includes but not limited to taking decisions, setting goals, establishing procedures, running programs and implementing the statute that established it.

Considerations in rule making procedure

There are various procedural problems which accompany administrative rule making. And there are various factors which may affect the type of procedure to be adopted by a particular agency or person. The procedure to be adopted by a single official could be different from that of a high-powered technical committee. There are five main factors which affect these considerations. They are enumerated and discussed below:

(a) The Characteristics of Parties Affected:

These may vary widely. For instance, whether or not antecedent consultation or prior notice is workable in terms of their number, whether or not they can easily be identified and whether or not the persons affected are organized. Where applicable, it is necessary to always consult with stakeholders, and harmonize or balance the competing or conflicting interests of all stakeholders.

(b) Nature of the Problem to be dealt with:

When the problem is a mere routine of the public service or government, for example, the period within which a particular form must be returned or the time to see a particular officer, prior notice is usually unnecessary. Also, sometimes the matter to be dealt with may be of such urgent or technical nature as to reduce the need for such procedure. The procedure may, however, become of utmost importance where, for instance, the regulation will affect fundamental rights or economic and financial interests of some people. In such cases, procedural formalities may be accorded before certain rules or regulations are made. In the absence of any express provision for such, the administrator is at liberty to proceed more freely.

(c) Characteristic of Administrative Determination:

More often than not, most active rule making involve the exercise, to some extent, of some discretion involving either the aims to be served or the means of attaining such aims. In such a case, it may not be practicable to consult affected interests. For example, if the minister of Health is to make regulations for stopping the spread of an epidemic what is involved may be of such a technical nature that affected interests may not be consulted. This is for practical reasons because even if persons to be affected are educated in the conventional sense, such education is inadequate to enable them appreciate the decisions of the administrator.

(d) Types of Administrative Agencies:

Whether or not the procedure would be required could be a function of whether the administrative agency is manned by one person or by a group of persons. In certain instances, two or more administrative agencies may be competent to make decisions regarding the same matter. In that case, what one agency does would be influenced by what its sister agency has already done. For example, the Police, the ICPC and the EFCC are all empowered by the Statutes establishing them to, inter alia, combat corruption. So, if the EFCC has investigated a particular corruption case, the ICPC does not need to duplicate such investigation. If the matter is to be properly handled by the ICPC, all that would be done is for the EFCC to hand over the matter to the ICPC together with the result of its investigation and exhibits and evidence. Then, the ICPC will proceed from there.

(e) Nature of Enforcement:

If it is subject to challenge in all its facets after promulgation, this may dispense with formality in its making. If it binds the affected parties only by requiring them to fulfil some procedural requirements, advance hearings may be unnecessary. But if the regulation requires the persons affected to disobey the regulations on the pain of loss to liberty or estate, then there is the need to allow for an antecedent opportunity for the prospective targets or victims of the enforcement to influence the decision. In

other words, if the regulation is to be self-enforcing with grave consequences on people's rights, antecedent regulations would be necessary.

Conclusively, administrative rules and regulations, policies, directives, etc., all come under the general name of delegated legislation. Whatever the nomenclature adopted, they are the means through which administrative agencies carry out their responsibilities. But much more important, however, are the factors that predominate in the minds of these agencies before they finally decide on a course of conduct or action.

RULE MAKING PROCEDURE

In administration, matters of procedures are as much important as substantive issues. This is because the procedure adopted could be very determinative of the worth of the substantive rules you get at the end of the day. For example, the procedure adopted by a criminal court could either make or mar the evidence of the defense. In the process of rulemaking, administrative agencies adopt one form of procedure or another depending on the occasion. It could be investigational, consultative, audictive or adversary. But you should note that the approach taken is usually a function of the environment. Despite the utility of consultation, however, Nigeria lacks an established record of consulting interested persons, perhaps, because enabling Acts do not require it. Finally, the role of discretion in administration should not be overlooked especially because administrative agencies cannot succeed without one form of discretion or another.

1.1 The methodology of Rulemaking procedure

The delegation of power on administrative bodies to make law takes different forms. Though the common method is for an Act of parliament to empower an authority to make rule, regulation, by law, order to do give directions. This is not exclusive of others. Secondly, some formal orders in rule making by administrative authorities have been developed over the years. The development, no doubt must have been in furtherance to the need to reduce to possible limit the arbitrariness in making delegated legislation. Prominent among these orders are the investigation, the consultative procedures, the audictive procedure and the adversary procedure. The adoption of any particular choice however depends on certain number of factors such as the stipulation as to adopt. Thus, administrative legislation in aid of such unpopular or unacceptable proposed policy could be prevented from seeing the light of the day.

The interface amongst the factors that influence administrators in their decision making has produced many types of administrative rule making procedures. For the purpose of our convenience, we will categorize them into four groups as follows:

1. Investigational Procedure;
2. Consultative Procedure
3. Auditive Procedure
4. Adversary Procedure

1. Investigational Procedure

As the name implies, this procedure is investigational. In other words, this is the stage where the administrative agency arms itself with the required information in order to

come up with an informed decision and sound rule or regulation. There are several ways in which it could carry out its investigations. It may set up a committee, a panel, a commission or a team to investigate the issues involved in a particular matter. In order to discharge its responsibility, such body would seek facts and information, make inquiries, hold hearings, and examine memoranda or reports. For example, following its acknowledgement of the fact that the 2007 Presidential Elections that brought his government to power was fundamentally flawed, late President Yaradua established the Uwais Panel to, inter alia, examine the problems associated with the conduct of elections and to recommend measures for conducting free and fair election in the country. A panel was also set up to investigate the outrageous effect of EndSARS protest in Nigeria.

Upon the conclusion of its assignment, the panel would usually submit report of its findings (including its recommendations) to its creator, that is, the body that constituted it. Thereafter, such creator will decide on what to do with the report. It may fully, substantially, partially accept the recommendations contained therein. In the worst of cases, it may reject the recommendations. It is quite usual for the government to issue a white paper on the submitted report wherein it will make its views known as to the acceptance or rejection of the recommendations.

A classic example of this procedure is the parliamentary or legislative hearing. For example, in the course of its proceedings whether or not relating to the passage of a bill, President of the Senate or the Speaker of the House of Representatives invites the Senators or Representatives affected by a particular problem or issue (e.g. flooding, erosion, or pollution, etc.) to address the parliament on the facts, the circumstances of the people, and on possible remedial or ameliorative measures. Those invited to address the parliament obtain their information from their constituencies, print and electronic media, internet, etc. In certain cases, the representatives of the people or of human rights or environmental rights bodies may be permitted to directly address the parliament or to submit memoranda, reports and recommendations.

What the parliament, the donor of power, can do in terms of investigations; administrative agencies, the donees of power, can equally do.

In the final analysis, it is at the discretion of the body to which a report is submitted to decide the weight it attaches to the recommendations in its making decisions, rules, regulations, policy statements and most important, in the action it takes.

2. Consultative Procedure

To 'consult' means to obtain information, advice or opinion of a person or body. This consultative procedure is the process by which an administrative agency gets interested persons or those to be affected by its decisions involved in the arrangements leading to the coming into effect of its rules, regulations and policies. It is a participatory procedure in the sense that it is an avenue for stakeholders to take part in the way and manner decisions or actions affecting them are taken. Persons that are usually consulted are stakeholders with special knowledge on the issues in question. In such consultation, the administrative agency obtains information or facts it does not already have or information or facts that supplement the one it already

have. In the process, it may obtain expert knowledge or advice either from individuals, or groups.

In order to elicit informed response from the stakeholders, it may send the proposed rules and regulations or policies or proposed line of action to the stakeholders for comments, observations, objections or suggestions. With a view to ironing out or resolving identified differences, it may also enter into discussions, correspondences, or negotiations with the interested persons.

The consultative system has over the years been institutionalized as manifest in the establishment or creation of statutory or governing boards, councils, or committee for administrative agencies. The remit of these statutory or governing bodies is to make policy decisions and formulate general rules or regulations for running such agencies. Before doing this, they consult amongst themselves and advice on important proposed decisions, rules or regulations or actions before they are adopted, published or implemented. It is noteworthy that members of these statutory or governing bodies are drawn from different backgrounds, professions, etc. The effect of this is that members bring their wealth of diverse knowledge and experience to bear on any proposed decision or action. Ultimately, the rules, regulations, policies or actions that are implemented would be fairly acceptable to all or, at least, to the majority and, most important, they would be less contentious or controversial.

Again, it is significant to remember that, in addition to their statutory duties, the members perform the following functions:

- (i) Furnishing the administrative agency with information and suggestions;
- (ii) Presenting views and information they received from stakeholders to the agency; and
- (iii) Rolling back the stakeholders' frontiers of ignorance, misinformation or prejudices by educating the stakeholders on the duties, decisions, rules, regulations and proposed actions of the administrative agency.

The utility of such in-house consultative body cannot be over-emphasized in view of the intricacies and the technicalities of the issues involved and the large number of persons that time may not permit the administrative agency to consult. Where an enabling act requires the administrative agency to consult stakeholders, such consultation must be carried out. However, where the law is silent on consultation, the agency is not bound to hold one. But it is not improper for the agency to discretionarily hold one. In this regard, recall the comments of Sir William Graham-Harrison in his evidence before the British Committee on Ministers' Powers: "No minister in his senses ... would ever think of making regulations without, where applicable, giving the persons who will be affected thereby or their representatives an opportunity of saying what they think about the proposal."

In Nigeria, only a few statutory enactments stipulate consultation. There is no established practice of consultation. Arguments often preferred against it is that it is expensive and that the public often have nothing to offer. Whilst this may be so, it should be noted that consultation is, undoubtedly, important because it enables objectionable proposals to be properly evaluated by administrative agencies before they take any action. Such consultation would drastically reduce discontent amongst

those to be affected by the rule or regulation. There may be no formal procedure for doing this. But where a formal procedure is expressly required, failure to comply may render the act void on procedural ground. See the case of **Bates v Lord Hailsham**[1972] I.W.L.R. 1373

Regarding those enactments that are silent on the issue of consultation, the agency simply follows the law by not conducting any consultation especially when such steps are geared towards implementing unpopular policies or self-enhancing programs. However, a worthy administrative agency should be guided by the above comments of Sir William Graham-Harrison.

Where the enabling Statute imposed a duty to consult and the agency failed to observe such duty, anything decision, rule, regulation or action that comes out therefrom is liable to nullification on the ground of procedural ultra vires. See the case of **Agricultural, Horticultural and Forestry Industry Training Board v Aylesbury Mushroom Ltd.** [1972]1All. See also the case of **Popoola v Adeyemo**[1992] 8 NWLR (Pt. 257) 1 S.C a matter that involved a chieftaincy dispute where Olatawura, JSC said that: Once it is established that those entitled to be consulted or those who ought to know, such as members of the ruling houses were shut out or excluded from the exercise leading to the registration of a Chieftaincy Declaration, it will be unjust to rely on such a declaration. It will amount to a violation of the right of those entitled to be consulted.

Justification for Consultative Procedure

Why should an agency consult stakeholders before it takes any decision or action? There are certain factors justifying such approach including:

- (i) It allows for the cross-ventilation of ideas to the end that objectionable laws, rules, regulations, order, decisions, policies, or proposed action are reviewed or abandoned. Ultimately, the administration process is the better for it because whatever the agency comes up with at the end of the day would be quite harmonious with the wishes and aspiration of the people. In order words, unnecessary rancour and bitterness are avoided and frivolous litigation prevented.
- (ii) The process enables administrative agency to acquire useful information and knowledge from the stakeholders. This pool of knowledge and information can be a useful database for the present and for future proposals.

Conversely, arguments against consultation include the following:

- (i) It may be time wasting and expensive; and
- (ii) The idea of consultation assumes that the stakeholders have something to offer on the basis of their training, academic background and consciousness. But, more often than not, especially in this part of the world, stakeholders lack the basic knowledge, technical orientation and consciousness to meaningfully contribute to the consultation process. 3.4

3. Audictive Procedure

This is the hearing procedure akin to the judicial process whereby the judge listens to both sides to the dispute before making his decision. Here, stakeholders present their views orally or by submitting memoranda or other documents. The notice as to the convening of such hearing is usually published in electronic or print media in order to enable interested parties to attend. No formal rules are required save those necessary for orderly conduct or behavior of the stakeholders. The advantage of this procedure is that interested parties are given prior notice in order to enable them participate in the process.

4. Adversary Procedure

This is the trial law making procedure. Interested parties are formally heard the way they would be heard in a court proceeding before the agency makes its decision. An example of this process is where a tribunal, a commission, a panel or committee is set up to investigate the cause of a problem and to hear the representations and submissions of stakeholders. Note that the parties could present their case in person or through their legal representatives. Though its workings are similar to that of the courts, it should be noted that rules adopted by the tribunal or panel are less formal than those utilized by the conventional courts.

You should note that the main remit of this body is fact-finding. At the end of its proceedings, it compiles and submits the report of its findings together with its recommendation to the appointing authority. Note that the report usually comprises the formal record of all the evidence presented by the parties at the hearing, their findings, and recommendations. Upon its receipt of the report, the appointing authority studies it and bases its proposed decision, rule or regulation thereon.

Exercise of Discretion in Decision and Rule Making

You will note that an agency is usually empowered to exercise discretionary power in arriving at a particular decision, rule, regulation, or policy. Generally, in exercising such discretion, the agency is not amenable to interrogation. However, there are instances where even though the agency has discretion, the court requires it to exercise it fairly, reasonably and lawfully. A case that demonstrates this point is **Padfield v Minister of Agriculture [1968] 1 All ER 694 HL**. See also: **Fawehinmi v Akilu [1987] 1 NWLR (Pt. 67) 797 SC** and **Stitch v. A.G. Federation [1986] 5 NWLR (Pt. 46) 1007 SC**.

In Padfield's case, the minister had a discretion to order an investigation into complaints regarding the administration of the Milk Marketing Scheme. However, the minister refused to refer Padfield's complaint to a committee of inquiry. For this, Padfield sued the minister. The House of Lords held on appeal that the minister's failure to order an inquiry was prejudicial to the aims and objects of the parent Statute, the Agricultural Marketing Act 1958.

Finally, there are procedures peculiar to certain organizations. Administrative agencies are no exceptions. As a result of the fact that they constitute the fourth organ of government and because they are close to the grassroots, the procedures they adopt in the making of rules and regulations are unique. The issue of consultation deserves some attention especially because it encourages participatory government and

responsive and responsible governance. In other words, it makes the people to see the government as their own which they will strive to assist to succeed in the delivery of goods and services as efficiently as possible.

Also deserving of mention is the issue of discretion usually exercised by administrative agencies. We all know that discretion is second nature to administrative agencies but what we are much more concerned about is the way and manner such discretion is exercised.

6. CONTROL OF THE RULE-MAKING

There is bound to be an abuse or misuse of the delegated legislation. The importance of the rule-making powers of administrative authorities and the need for its exercise under modern condition have led writers to emphasize increasingly that control is necessary to ensure against misuse or abuse. The two main methods of controlling subsidiary legislation would appear to be through the law makers (legislative during a civilian regime) themselves or through the courts. It is noteworthy that there is also executive control over the exercise of the power of delegated legislation.

The need for control of rule-making power is due to the dangers often associated with such powers. This is because administrative powers are prone to abuse and can easily become arbitrary if unchecked. There are safeguards within and outside the system of administration itself. We are, however, mainly concerned with control outside the administration, which may be parliamentary, presidential, executive or, perhaps, military.

(a) Legislative Control

We have earlier stated that it is imperative and necessary for the legislatures to delegate powers, to departments or agencies to fill in details in the statutes. However, the agencies may exercise their powers in oppressive or illegal manners or abuse their powers to the detriment of the populace. It is therefore of great importance that the law-makers, be they military or civilian, should exercise strict supervision over legislative powers thus delegated, whether in respect of policy matters or any issue affecting the interest of the common man. There are many ways by which legislature control the rule-making bodies.

Under the affirmative procedure of rule-making, the legislatures may provide in the enabling laws to the effect that a statutory instrument shall not become law unless and until the same is ratified or approved by the legislature conferring the power. By this the legislature exercises supervision and control over the agencies to ensure that they do not misuse or abuse their powers. For instances, section 4 of the Official Secrets Act, 1962 empowers the Ministry to make regulations for controlling the manner in which any person conducts any organization for receiving letters, telegrams, packages or other matter for delivery or forwarding to any person and providing for the furnishing of information and keeping of records by persons having or ceasing to have the conduct of such an organization. Subsection 3 thereof however provides that “[r]egulations under this section shall not come into force until they are approved by resolution of each House at the National Assembly”.

Also, there are provisions of statutes requiring mere laying before the legislative houses or laying subject to the objection of the legislature. Section 17(1) of the Institute of Chartered Accountants of Nigeria Act, 1965 provides that any regulations made under the Act shall be published in the Federal Gazette as soon as may be after they are made; and the Minister shall lay a copy of any such regulations before each House of the National Assembly as soon as may be after they are so published.

The exercise of delegated legislation may also be subject to the Committees in the Houses of Assembly. The British Committee on Ministers' Powers in 1932 recommended that each House should set up a Standing Committee to consider and report on every regulation made in the exercise of delegated legislative powers required to be laid before Parliament. There are now in England two Standing Committees of Parliament, viz: (a) the Select Committee on statutory instruments of the House of Commons and (b) the Special Orders Committee of the House of Lords. Other ways in which the Legislature may control the activities of the executive branch and administrative agencies include the following:

- (a) Amending the law setting up the administrative agency with a view to making it more effective and responsive to the demands of the people;
- (b) Repealing the law establishing such agency and, *ipso facto*, abolishing the agency;
- (c) Inviting a minister or head of an agency. This is usually done where there are grey areas in the operations of the ministry or agency or where there is public outcry against their conduct or, at any rate, where there are unfavorable media reports of their incompetence or insensitivity. Under this type of control, which Nigeria operated in the First Republic, there is the requirement of laying before the full House of Parliament which may take various forms:
 - (a) Laying subject to Annulment, Amendment or Disallowance. For example, under **Section 10(3) of the Nigeria Citizenship Act 1961**, such regulation becomes void if not so laid and the parliament exercises its powers within specified days after which it comes into effect or lapses.
 - (b) Laying subject to Affirmative Resolution. For instance, **Section 5 of the Emergency Powers Act 1961** provides that regulations made by the president become void if not approved by a resolution of both Houses within 4 months.

b) Constitutional Control

You should note that it is the legislature or the National Assembly that enforces the constitutional control. This type of legislative control operated under the 2nd Republic and it is similar to the one that exists under the U.S Constitution. It is, however, very different from that of the parliamentary type of control and it is not so laborious. This is because the duty of control is left more in the hands of the courts, under the doctrine of separation of powers. Thus, this type of control tends to be more indirect through the requirement of certain standards to which the administration must conform. **Worthy of note is the provision of section 88 of the CFRN 1999 which gives the National Assembly the power to direct investigations into any matter or thing for which it has the powers to make laws and into the conduct of affairs of any person,**

authority, government department or minister charged with the responsibility of executing the laws of the National Assembly and so on. The purpose of this is to expose and prevent corruption, inefficiency or waste and to enable it make laws or correct defects in existing ones. Whilst this is not a direct type of legislative control, it is there is no doubt that it can indirectly be used by the legislature to control the power of delegated legislation. Under the military, this type of control is probably more absent in the absence of any express constitutional-type control. Undoubtedly, due to the legislatively unlimited powers of the military power, it can be exercised if desired.

c) Executive Control

The executive is aware of the need to supervise subordinate legislation in order to keep executive family within the bounds of law. This is essential because of the concept of collective responsibility under the parliamentary system of government which makes it imperative to call the executive to be careful so as to avoid controversy. In England, for example, there's the legal committee of the cabinet which is charged with the screening of subordinate legislation. In the US, the president shares such power with the senate and the situation in Nigeria is similar to that of the U.K in some respect and that of the US as well.

The most potent of such powers of control being exercised by the minister on his subordinate is through the appointment of the board of statutory corporations. Though these corporations are in theory independent and charged with dealing with particular social matters, they each have a parent ministry, so that the minister can give general direction as to their operation. This executive control can also be seen within the hierarchy of control in each setting. More specifically, the executive control administrative powers through the following ways:

- (a) Issuing general or specific directives regarding the way administrative agencies should carry out their duties.
- (b) Requiring the agency to submit its proposed decision, rules, regulations, budget, etc., for examination or vetting before implementation.
- (c) Directing relevant agencies such as the Police, Ministry of Justice, ICPC, EFCC, Code of Conduct Bureau, etc., to initiate criminal proceedings or to prosecute erring officials such as those accused of corruption and money laundering.
- (d) Setting up a panel of inquiry to look into the activities of the relevant agency and to make recommendations to the government. Note that the executive often resorts to this measure although the reports are usually not acted upon because of several reasons including the need not to rock the boat of the influential persons found culpable by those panels.
- (e) Issuing a query or caution to an erring officer.
- (f) Suspending the officer from duty.
- (g) Demoting the officer to a lower rank or status.

(h) Transfer or re-deployment of the erring officer from his present office to a different one. Removal, retirement or termination of service

d) Judicial Control of the Power of Rule-making

Our presidential system of government, unlike English Parliamentary system of government, allows the judiciary to exercise more control over the exercise of the power of delegated legislation. This is because the principle of separation of power gives less power to the legislatures to exercise control over the agencies. The judiciary exercises its checks over agencies, in their rulemaking through what is known as judicial review. This means that review by the court of any exercise of power to make some form of delegated legislation. There are many reasons why a regulation or rule will be challenged.

An action may be filed in Court by any person who is affected by the rule of an administrative on the ground that the rule is invalid or unreasonable in the circumstances. In **Williams v Majekodunmi (1962)**¹ All NLR 413, the Plaintiff challenged the legality/validity or justifiability of the Emergency Powers (Restoration Orders) Regulations, 1962 which were made pursuant to the Emergency Powers Act, 1962, which restricted the Plaintiff's movements to a distance of three miles from a certain address in Abeokuta. The Court held that the order was not reasonably justifiable in the circumstances and set the same aside. The court however did not declare the Regulations null and void. Where the order of arrest is made without due reference to law or arbitrarily, the same is bound to be set aside. See **Re Mohamed Olayori (Suit M/196/96 of November 17, 1969) (unreported)** but cited by Oluyode. Where an order has been made ultra vires the rulemaking body the same is liable to be set aside. See **Akingbade v Lagos Town Council (1995) 21 NLR 90**.

Where a power is granted to a body to make regulation, that body cannot sub-delegate the said power unless authorized to do by the parent Act. This is because the power is only exercisable by that person himself directly and personally and he lacks the legal power to re-delegate such power on the principle of *delegatus non potest delegare*. See **Okon v Delta Steel Co. Ltd. (1990)**² NWLR (Pt. 130) 87; and **NNPC v Trinity Mills Ins. Brokers (2003) 9NWLR (Pt. 825) 384**. If the procedure laid down in the enabling law to make the rules has not been complied with, then the rule becomes invalid. For instance, a declaration that is not published in Gazette and not therefore not brought to the attention of the parties affected by the declaration becomes ineffective. See **Johnson v. Sargant (1918)**¹ KB 101; and **Popola v. Adeyemo (1992)**⁸ NWLR (Pt. 255)¹. The same end will be the fate of a rule that is passed in excess of the power conferred.

Conclusion

Because power corrupts and absolutely power corrupts absolutely, there is always the need by the donor of power to nip in the bud any tendency on the part of the donee to exceed its power. Such necessity is the more justified when persons who may be

affected by any misuse of power are very many. Thus, there are various ways by which administrative agencies can be restrained from `exceeding their powers.

P.S.: This lecture note was prepared by **Dr. I. L. Agbo (Mrs.)**, while **Adv. Chimdike** and **Faithful** only highlighted certain parts to enhance clarity and ease of understanding.